

24STCV33682 24STCV33682

County: los-angeles

Division: Civil Law and Motion

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MOTION TO COMPEL

FURTHER

The Court tenders the following

tentative decision in the matter Yesenia Zacarias, et al. v. FCA US, LLC, et al., Los Angeles County Superior Court case number 24STCV33682, set for hearing on August 19, 2026. FCA US LLC (Defendant) moves for an order compelling Yesenia Zacarias (Plaintiff) to provide further responses to its requests for production of documents, set one (RFPs). Defendant also requests sanctions. Plaintiff has not filed a brief in opposition. The motion is granted

A.

Procedural History

Plaintiff filed the present suit

alleging claims against Defendant under the Song-Beverly Act on December 19, 2024. On April 7, 2026, Defendant propounded the relevant RFPs. (Wang Decl. ¶ 4, Ex. A.) Plaintiff provided allegedly noncompliant and evasive responses on May 11. (Id. ¶ 5, Ex. B.) Defendant filed the present motion to compel further responses on July 16 after Plaintiff failed to respond to Defendant's meet and confer correspondence. (Id. ¶ 6.) Plaintiff has still failed to provide further responses. (Id. ¶ 8.)

B.

Legal Standard

A party may move for an order

compelling further responses to an inspection demand if: (1) a statement of

compliance is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or (3) an objection is meritless or overly general. (Code Civ. Proc., § 2031.310, subd. (a).) Such a motion must set forth specific facts showing good cause justifying the discovery sought and be accompanied by a meet and confer declaration under section 2016.040. (Id., § 2031.310, subd. (b).) Any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further responses is subject to monetary sanctions, unless they acted with substantial justification. (Id., § 2031.310, subd. (h).)

C. Discussion

Defendant has set forth good cause justifying the discovery sought, explaining that the relevant RFPs relate to Plaintiff's claims and involve discoverable information. Specifically, Defendant seeks further responses to RFPs 49–64. These involve documents in support of Plaintiff's causes of action, the attorney's fees incurred in prosecuting them, documents related to incidental damages claimed, and documents supporting the essential elements of Plaintiff's claims. Plaintiff offered the same boilerplate objections with respect to every request. In failing to oppose the present motion, Plaintiff has not substantiated any of these objections. Thus, the Court finds these objections improper and further responses are therefore warranted pursuant to Code of Civil Procedure section 2031.310, subdivision (a)(3). Accordingly, Defendant's motion is granted.

Defendant seeks sanctions pursuant to section 2031.310, subdivision (h). Sanctions are appropriate as Plaintiff has unsuccessfully opposed the present motion to compel further responses and not offered any substantial justification for her failure. Defendant's counsel alleges hourly rates of \$450, \$375, and \$200 which the Court credits. (Wang Decl. ¶ 9.) Counsel additionally alleges 3.4 hour spent preparing the present motion. (Ibid.) However, counsel fails to explain which billing rate is properly used for those hours. Adopting the \$375 rate and acknowledging the simplicity of the present motion, the Court credits Defendant's counsel with 2 hours spent drafting the motion, declaration, and separate statement. The Court additionally recognizes the \$60 filing fee. (Ibid.) Accordingly, Defendant is awarded \$810 in sanctions, payable by Plaintiff's counsel ($[\$375 \text{ per hour}] \times [2 \text{ hours}] + [\$60 \text{ filing fee}] = \810).

D. Conclusion

Defendant's motion is granted. Plaintiff's
counsel is ordered to pay \$810 in sanctions to Defendant.